

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, August 13, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, August 13, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05165	Esther Delgadillo Lopez vs City of Merced et al.
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Motion for Leave to File Cross- Complaint Against City Of Merced and Rebecca Ann Sweeley

Defendant Arroyo's unopposed motion for leave to file a cross-complaint is GRANTED.

Defendant shall file the proposed cross-complaint within ten (10) days of this court's order.

The Court will sign the order lodged with the court on July 6, 2026.

25CV-01659	Joe Chavez vs General Motors, LLC
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Motion to Stay Proceedings

Plaintiff's motion to stay proceedings is DENIED.

Plaintiff seeks a stay based on the Second District Court of Appeal taking up the novel issue of whether a defendant's election under Code of Civil Procedure section 871.30,

subdivision (a) can retroactively render a previously filed complaint untimely pursuant section 871.21.

That novel issue is not currently before this court. The only pending issue before this court is Defendant's motion to dismiss for discovery violations. This does not create a current risk of inconsistent rulings. Further, the balance of factors does not favor a stay. A stay at this time would not promote judicial economy or accommodate the ends of justice. Accordingly, the motion is denied.

26CV-01777 Jovani Gaytan-Paez vs Razzari CDJR, et al.

Petition to Compel Arbitration, Dismiss Putative Class Claims, And Stay Proceedings

The motion to compel arbitration, dismiss putative class claims, and stay proceedings is DENIED. See, *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641.

22CV-04070 Joseph Doe 807 vs Doe 1

Trial Setting Conference

Appearance required.

22CV-04123 Joseph Doe 806 vs Doe 1, et al.

Trial Setting Conference

Appearance required.

22CV-04124 Joseph Doe 802 vs Doe 1

Trial Setting Conference

Appearance required.

22CV-04126 Joseph Doe 804 vs Doe 1, et al.

Trial Setting Conference

Appearance required.

22CV-04178 Joseph Doe 805 vs Doe 1, et al.

Trial Setting Conference

Appearance required.

25CV-02701 Etelvina Delgado vs Cal Pro Farm Labor Inc

Motion to Lift Stay and Reinstate Litigation

Plaintiff's unopposed motion is GRANTED.

The Court finds Defendant has waived its right to enforce the arbitration agreement. The stay is hereby lifted.

The Court will sign the order lodged on June 22, 2026.

Order to Show Cause re: Terminating Sanctions/Status Conference for Defense Counsel

Appearance required.

25CV-04165 Tamela Qualls vs Department of Motor Vehicles

Writ of Mandate

The petition for writ of mandate is DENIED.

As a fundamental vested right was at issue, the Court applied the independent judgment standard of review.

Upon review of the entire administrative record the Court finds: (1) there was no error of law; (2) Petitioner was provided a fair hearing; (3) the Department of Motor Vehicles' decision is supported by its findings of fact, which in turn are supported by the weight of the evidence; and (4) there was no abuse of discretion.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, August 13, 2026
10:00 a.m.

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Case No.	Title / Description
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21CV-00240	Elnza Akbari vs. Sumer Johal
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Motion to Tax and/or Strike June 1, 2026, Memorandum of Costs After Judgment

Appearance required.

24CV-03031	JPMorgan Chase Bank, N.A. vs. Paula Molina
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Status Review of Settlement

Appearance required. Appear to address status of settlement. If Plaintiff files a notice of conditional settlement or a request for dismissal prior to the hearing, the hearing will be vacated.

25CV-03156

State Farm Mut. Auto. Ins. Co. vs. Sergio Menesis

Status Conference – Status of Default Judgment

Appearance required. Appear to address status of default judgment. If Plaintiff files a request for entry of default judgment prior to the hearing, the hearing will be vacated.

26CV-02966

Kamani Morrow vs. Venkatt Ayyaswamy

Motion to Vacate Judgment (Small Claims)

Appearance required. If the Court grants Defendant's motion, the parties should be prepared for immediate trial of Plaintiff's claim.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, August 13, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-04138	Kendra Cavanah vs. Richard Davis
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Order to Show Cause Re: Restraining Order

Appearance required.